

		Defendant is ordered to pay Plaintiff sanctions in the amount of \$330 within 10 days. To the extent Defendant has not served responsive documents, Defendant is ordered to do so within 10 days. Plaintiff to give notice.
4.	LAW OFFICES OF MARK B. PLUMMER, PC VS. NETWORKSOLUTIONS.COM 2020-01141868	1. Motion to Compel Further Responses to Requests for Admissions, Set One (ROA 711) 2. Motion to Compel Further Responses to Special Interrogatories, Set One (ROA 727) 3. Motion to Compel Further Responses to Form Interrogatories, Set One (ROA 732) 4. Motion to Compel Further Responses to Requests for Production, Set One (ROA 752) The motions are CONTINUED to 9/1/26. These motions involve written discovery served to Plaintiffs on 2/15/21 by Defendant's former counsel, Ms. Juarez. On 11/12/25, the Court granted Defendant's motion to compel Plaintiffs to serve responses to the written discovery. The Court ordered Plaintiffs to serve verified responses within 30 days of the order. The order stated, "The Court declines to award sanctions to either side because both sides could have easily avoided this dispute by making a reasonable compromise rather than incurring attorney fees. The parties should engage in discovery cooperatively. The Court will not tolerate gamesmanship or delay tactics." The order further stated, "In future, if any party files or opposes discovery motions on grounds that could have been resolved by diligent efforts to meet and confer, that party and their counsel will be subject to sanctions." In these motions, Defendant contends Plaintiffs' Court-ordered responses were deficient. Code of Civil Procedure section 2016.040(a), amended effective 1/1/26, provides, "A meet and confer declaration in support of a motion shall state facts showing a reasonable and good faith attempt, either in person, by telephone, or by videoconference, to informally resolve each issue presented by the motion." On 2/2/26, Defendant's counsel filed this motion after sending meet and confer emails on 1/27/26. Defendant's counsel also requested an extension to file the present motions in order to arrange a telephonic conference regarding the dispute. (Lopez Decl., ¶ 3.) Mr. Plummer told the legal assistant at defense counsel's office they had sent "50 pages of garbage" and declined to extend the motion deadline. (Lopez Decl., ¶ 4.)

In opposition to the motion, Plaintiffs assert the parties had an agreement that supplemental responses would be served by 3/2/26 and Defendant prematurely filed the motion which Plaintiff was engaged in a jury trial. Plaintiffs also assert the discovery is not reasonably calculated to lead to discovery of admissible evidence. Plaintiffs served supplemental responses on 6/29/26. (Exhibit C.)

Plaintiffs have not filed separate statements of discovery in dispute. (Rule 3.1345.)

Both sides have failed to make adequate efforts to meet and confer. The parties' counsel are required to engage in an in-person, telephonic, or videoconference discussion of the dispute under the recently-amended section 2016.040. Defendant's counsel should have diligently attempted to comply with their meet and confer obligations by scheduling a conference upon receiving Plaintiffs' responses. Plaintiffs should have promptly amended their responses, granted an extension if necessary, cooperated in attempts to schedule a conference, and should not have called Defendant's meet-and-confer correspondence "garbage."

Counsel shall comply with section 2016.040 with regard to any remaining dispute no later than 7/24/26.

No later than 7/31/26, Defendant's counsel shall file and serve a supplemental separate statement of discovery in dispute regarding any remaining disputed responses/supplemental responses. Defendant's counsel shall also file and serve a declaration describing their compliance with this order.

No later than 8/7/26, Plaintiffs' counsel shall also file a supplemental separate statement and declaration.

Neither party is invited to file additional points and authorities regarding the motion and any such filing will be disregarded by the Court.

Either side's counsel who fails to meet and confer in good faith will be subject to sanctions. Failure to exercise civility and professionalism in compliance with the State Bar and Orange County Bar Association Guidelines will also result in sanctions. Moreover, the Court may appoint a discovery referee, with costs borne by the parties, if the parties are unable to conduct discovery cooperatively. (Code Civ. Proc. § 639.)

The Court also expects the parties to engage in similar meet and confer efforts regarding the other pending discovery motions which have been continued to 9/1/26. (ROAs 717, 722, 737, and 742.)

5	HNHPC, INC. VS. THE DEPARTMENT OF CANNIBIS CONTROL	MOTION FOR RECONSIDERATION The Motion of Respondents Department of Cannabis Control and Clint Kellum in his Official Capacity as Director of the Department of Cannabis Control (“Respondents”) for Reconsideration of the Court’s prior ruling on the Petition for Writ of Mandate filed by Petitioner HNHPC, Inc. (“Petitioner”) is DENIED. Respondents’ Request for Judicial Notice is GRANTED as to Exhibits 20 through 22 and DENIED as to the remaining because they are not material to the disposition of the Motion. Petitioner’s Request for Judicial Notice of Exhibits 1 and G is GRANTED. Code of Civil Procedure section 1008, subdivision (c) provides, “If a court at any time determines that there has been a change of law that warrants it to reconsider a prior order it entered, it may do so on its own motion and enter a different order.” “A ‘change of law’ under section 1008, subdivision (c), ‘is always an appropriate basis, up until a final judgment is entered, for changing an interim order....’ [Citation.]” (<i>State of California v. Superior Ct. (Flynn)</i> (2016) 4 Cal.App.5th 94, 100.) As applicable here, Business & Professions Code section 26067, subdivision (b)(2), was amended, effective January 1, 2026, by Senate Bill 861. The court issued its ruling on the Petition for Writ of Mandate under the prior version of section 26067, subdivision (b)(2), therefore, Respondents ask that the court reconsider its prior ruling. Prior to the amendment, section 26067, subdivision (b)(2) provided, “The <u>database</u> shall be designed to flag irregularities for the department to investigate.” (Emphasis added.) As amended, section 26067, subdivision (b)(2) provides, “The <u>electronic system</u> shall be designed to flag irregularities for the department to investigate.” The amendment simply replaced the term “database” with “electronic system” and was a terminology change for clarification and not a substantive change. This is reflected in the legislative history of Senate Bill 861. Specifically, the Legislative Counsel’s Digest of the amendment states: “Existing law requires the department to establish a track and trace program for reporting the movement of cannabis and cannabis products throughout the distribution chain, as specified. Existing law requires the department, in consultation with the California Department of Tax and Fee Administration, to create an electronic database containing the electronic shipping manifests to facilitate the administration of the track and trace program, as specified. [¶] <u>This bill would instead refer to the electronic database as an electronic</u>
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		<u>system.</u>” (Petitioner’s RJN Ex. 1; Legis. Counsel’s Digest., 2025-2026 Regular Session, S.B. 861 [emphasis added].) Similarly, the Senate Floor Analysis of Senate Bill 861 states that: “This bill <u>replaces</u> references to DCC’s <u>electronic database with electronic system</u> to more accurately reflect to the functionality of the system.” (Senate Rules Committee, Off. of Sen. Floor Analyses, 2025-2026 Regular Session, S.B. 861, 9/25/25 in Assembly [emphasis added].) The Senate Third Reading explained, “This bill contains several <u>technical and noncontroversial changes</u> to MAUCRSA and provisions relating to the DCC. Specifically, this bill would update cross-references in statutes providing for license application requirements, <u>clarify that track-and-trace is an electronic system rather than a database</u>, and make other minor changes. <u>None of the changes proposed by this bill are controversial or meaningfully substantive.</u>” (Respondent’s RJN Ex. 22; Senate Committee, 2025-2026 Regular Session, S.B. 861, Sen., 9/4/25 [emphasis added].) Thus, the legislative history of Senate Bill 861 shows the amendment is non-substantive and therefore does not impact the court’s prior analysis. Accordingly, the court finds the amendment does not warrant reconsideration of its prior ruling. Moving party to give notice.
6.	DOAN VS. KIA AMERICA, INC. 2025-01513185	MOTION FOR SANCTIONS Plaintiffs Carla T. Doan and Jonathan I. Weaver’s Motion for Sanctions Under Code Civil Procedure, section 871.26 is GRANTED. Plaintiffs move for an order imposing a monetary sanction of \$2500.00 against the attorney of record for defendant Kia America, Inc. for the failure to comply with the provisions of Code Civ. Proc., section 871.26, subdivision (h)(6), (7), (8), (11) and (12). Code Civil Procedure, section 871.26, subdivision (b) provides: (b) Within 60 days after the filing of the answer or other responsive pleading, all parties shall, without awaiting a discovery request, provide to all other parties an initial disclosure and documents pursuant to subdivisions (f), (g), and (h). Code Civil Procedure, 871.26, subdivision (h) provides, in relevant part: The defendant or manufacturer shall provide the following documents to all other parties pursuant to